ISAAC SAMUEL LEVY
versus
JULIA NAILE NAOME ARYEH (NEE LEVY)
and
MAURICE SAMUEL LEVY
and
RAYMOND SAMUEL LEVY
and
FARMEX (PRIVATE) LIMITED
and
MUTUAL FINANCE (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE, 2 and 10 July 2026

Urgent Chamber Application

F Mahere with B Masaiti, for the applicant
E Mubaiwa, for the respondents

CHIKOWERO J

Introduction

[1] In finding that the matter which had been placed before him as an Urgent Chamber Application was not urgent MAFUSIRE J (as he then was), in *Mushore* v *Mbanga* N.O and *Others* HH 381/16, said at p7:

> "I find it hard to accept that the applicant's legal practitioners had carefully thought through their client's case and the possible legal remedies available to him before bringing this application in the form that it is in."

These sentiments apply to the matter before me with equal force.

The Background

[2] The applicant, first, second and third respondents are siblings. They are the children of the late Harare businessman, Samuel Levy. They also hold equal shares in the fourth respondent, a company duly registered in terms of the laws of Zimbabwe.

[3] The fifth respondent is also a company duly incorporated in terms of the laws of this country. It is a wholly owned subsidiary of the fourth respondent.

[4] The applicant and the first three respondents are also directors of the fourth and fifth respondents.

[5] Following certain differences between the parties, the applicant, as plaintiff, issued summons against the respondents, as defendants, seeking the following relief:

> "(a)An order Declaring the Special Power of Attorney (SPOA)dated November 30, 2025, to be a forgery, null, void *ab initio*, and of no legal force or effect.
> (b)An order for the cancellation of the Acknowledgement of Debt (AOD)and the Written Agreement dated March 15,2025, in the sum of US$15 000 000 on the grounds that the plaintiff's signature was procured under extreme, unlawful economic and psychological duress.
> (c) an order compelling the fourth and fifth Defendants to immediately pay to the plaintiff all unlawfully withheld monthly remuneration and all accrued dividend distributions as due to shareholders backdated from the first of January 2025 to the date of full payment."

This relief is set out in the declaration annexed to the summons filed of record on 22 June 2026.Paragraph (c)of the prayer is a restatement of the same relief appearing as paragraph 3 of the summons. The latter reads:

> "[3] An order compelling the fourth and fifth Defendants to immediately pay to the Plaintiff all unlawfully withheld accrued dividend distributions backdated from the date of the unlawful cut off to the date of full payment."

[6] The summons was issued out of the High Court at Harare under case number HCHF 2738/26.That matter is pending.

[7] The declaration annexed to the summons sets out the basis for the prayer couched as (a) and (b) and reproduced at paragraph 5 of this judgement. In pleading the basis for the prayer reflected as (c) at paragraph 5 of this judgement, the declaration records:

> "[15] <u>As a consequence of challenging these documents, the Defendants have executed an active wave of malicious economic duress by completely cutting off the Plaintiff's contractually agreed monthly remuneration and withholding all dividend distributions</u>.
> [16] <u>The Defendants are actively deploying unverified, self –prepared internal financial spreadsheets to artificially reduce the Plaintiff's income and entitlement to distributions to zero. This total financial cut off is an active tactic of economic duress, calculated to starve the Plaintiff into submission, prevent him from funding his ongoing legal representation, and force him to abandon the proprietary rights and overriding control left to him by his late father.</u>
> [17] The Defendants have no right to act in the manner they are doing" (emphasis is mine)

<u>This Application</u>

[8] On 23 June 2023 the applicant filed the present urgent chamber application against the respondents. The certificate of service crisply sets out both the cause of action and the basis of the urgency in the following words:

> "[1] The applicant has concurrently filed a comprehensive Summons, under HCHF 2738/26 to challenge and set aside a forged Special Power of Attorney dated November 30,2025, and USD$ 15 000 000.00 Acknowledgement of Debt extorted under duress. The determination of those core rights is now formally *sub judice.*
> [2] Following the Applicant's challenge against these fraudulent corporate instruments in criminal proceedings currently pending, the Respondents have aggressively escalated the dispute into an open economic war. By way of a formal letter by their legal practitioners Messrs Hogwe Nyengedza, dated 5th June 2026 the Respondents recorded a unilateral decision to completely cut off and suspend all monthly financial drawdowns, salaries, and distributions due to the Applicant.
> [3] This cut off violates the long standing practice of declaring monthly dividends and paying all shareholders *pro rata*, which practise is currently ongoing to the benefit of the first, second and third Respondents and to the exclusion of the Applicant.
> [4] The harm being visited upon the Applicant is immediate, ongoing, and catastrophic. The complete withdrawal of his income is calculated to induce an artificial state of financial destitution. This economic duress is specifically deployed as a litigation tactic to prevent the Applicant from maintaining his basic livelihood and, critically, from funding his legal practitioners in the main action. If the interim relief is not granted immediately, the applicant will be starved into legal submission, rendering his constitutional right to a fair trial an absolute nullity.
> [5] The applicant has exhibited exemplary diligence. He approached his practitioners immediately upon being served with the financial cut off notice on June 5, 2026.The technical compilation of the main summons and current urgent chamber application within days of the trigger event satisfies the strict threshold of urgency required by the rules of this court.
> [6] The Applicant has no other administrative or non-litigious recourse to restore his income. The Respondents have closed ranks, locked him out of operational governance, and are utilising unverified spreadsheets to reduce his distributions to zero. An interim mandatory interdict restoring his dividends is the only mechanism available to preserve the *status quo* pending trial.
>
> Accordingly, I certify that this matter cannot await a hearing on the ordinary court roll."

Since the certificate of urgency summarises the applicant's cause of action and what it is that is said to have triggered the institution of proceedings through the chamber book, it is not necessary to rehash the contents of the founding affidavit. The Hogwe Nyengedza letter of 5 June 2026 addressed to the applicant's legal practitioners reads in material part:

> "Re: ISAAC SAMUEL LEVY: ACKNOWLEDGEMENT OF DEBT DATED 15 MARCH 2025
> We refer to our letter dated 26 May 2026 and to the above matter.
> [1] We are instructed that, notwithstanding the position clearly communicated in our letter under reference, your client has continued to contact the Chief Operating Officer of Mutual Finance (Private) Limited directly, demanding or requesting various payments which he alleges arise from the company's obligations under the acknowledgement of debt dated 15 March 2025.
> [2] That conduct is unacceptable. Your client is legally represented. The company is also legally represented. All correspondence, demands, requests or communications concerning the acknowledgement of debt, or any alleged entitlement arising therefrom, must be addressed through us.
> [3] For the avoidance of doubt, our clients reiterate the position set out in our letter of 26 May 2026.No benefits, payments, advances, dividends, disbursements, allowances or other

financial accommodations shall be made to your client pursuant to, or on account of, the acknowledgement of debt dated 15 March 2025, until the issues affecting that instrument have been resolved.
[4] This includes, without limitation, any demand for dividends, advances, account payments, allowances, or other alleged benefits said to be payable under or by reference to the acknowledgement of debt
[5]……
[6]……
[7] Your client is therefore required to cease and desist from making direct demands upon the Chief Operating Officer, the Finance Department, or any other officer, employee or representative of the company."

[9] On 8 June 2026 the applicant's legal practitioners wrote to Hogwe Nyengedza in the following terms:

"Re: ISAAC LEVY: ACKNOWLEDGEMENT OF DEBT
Reference is made to the above, and in particular to your letter under the same heading dated 5 June 2026 delivered to us on the same day.
[1] We have taken note of the issues raised in your letter, and our client has instructed us to respond as follows:
[2] The requests by our client do not arise from the acknowledgement of debt. They arise from his position as a shareholder. As with all other shareholders, our client is entitled to make any requests as and when they arise. Kindly advise your clients correctly.
[3] Regards the position communicated to us that no benefits, payments, advances, dividends, disbursements, allowances or any other financial accommodations shall be made to our client pursuant to or on account of the acknowledgement of debt, this is well noted. Our client therefore expects all payments to him to revert to the position and amounts before the acknowledgement of debt.
[4] For the avoidance of doubt, this means all shareholders will now get equal amounts of money in dividends between the four of them henceforth with.
[5] We expect this payment within the next 5 days and every month thereafter.

Be guided accordingly."

[10] Because of the unique circumstances of this matter, I reproduce the relevant portion of the draft order annexed to the founding affidavit. It is couched as follows:

"TERMS OF FINAL ORDER SOUGHT
That you show cause to this Honourable Court why a final order should not be made in the following terms:
[1] Pending the determination of the matter under HCHF 2738/26 the provisional order granted in this matter is together with all its antecedents be and is hereby confirmed.
[2] The unilateral decision of the first to third Respondents to completely suspend and cut off the Applicant's dividend distributions be and is hereby declared unlawful and invalid.
[3] The fourth and fifth Respondents be and are hereby directed to maintain and pay the Applicant's monthly dividends due to him *pro rata* to his 25% shareholding.
[4] The first, second and third Respondents shall bear the costs of this application on a punitive scale of legal practitioner and client, jointly and severally, the one paying the others to be absolved.

INTERIM RELIEF GRANTED

> Pending the confirmation of the provisional order, the Applicant be and is granted the following relief:
> [1] The fourth and fifth Respondents be and are hereby ordered and directed to immediately restore, reinstate, and pay to the Applicant his monthly declared dividends.
> [2] The fourth and fifth Respondent are ordered to immediately pay to Applicant all backdated and outstanding remunerations sums and distributions that have been withheld or accumulated from the date of the unlawful financial cut off on June 5 2026 to the date of the granting of this Order within forty eight (48) hours of the service of this order.
> [3] The first to third Respondents are strictly interdicted and restrained from reducing the Applicant's distribution and dividends entitlement.
> [4] The payment of the Applicant's monthly dividends shall continue to be executed on or before the 25th day of every consecutive calendar month pending the finalisation and determination of the main action instituted by the Applicant under HCHF 2738/26 in the High Court."

[11] The respondents filed papers opposing the application on the merits. They also raised a number of preliminary points one of which was that the matter was not urgent.

[12] The opposing papers irked the applicant. Dealing with the issue of urgency in his answering affidavit, the applicant said:

> "[4] …The Respondents' calculation of my delay is factually incorrect. They assert that my cause of action arose on the 25 May 2026 but this cannot be further from the truth.
> [5] The active trigger event occurred when the first, second and third Respondents cut me off financially and refused to pay me a salary or dividend which was due to me as a shareholder of fourth and fifth Respondent's in mid-June. The letter I received was on 5 June. My legal practitioners responded to it on 8 June 2026.I showed exemplary procedural patience by waiting until 22 June 2026 to file this application, and I afforded first, second and third Respondents a reasonable opportunity to clear the payment baseline before initiating urgent litigation. I filed this application on June 22, 2026, a mere 10 days after the cause of action arose. All facts considered, I did not waste time in approaching this Honourable Court for urgent relief. The urgency is continuous, real and catastrophic.
> [6] Critically, it has been a long standing matter of business practice within Mutual Finance (Private) Limited for shareholders do not receive formal salary slips when collecting monthly funds. Rather, payments have historically run late into the month or fluctuated based on cash layout schedules. I stress that first, second and third Respondents have no legal basis to cut me off financially …
> [7] ……The Respondents argue that this is a simple monetary claim that cannot satisfy the standard of irreparable harm. They choose to ignore that this complete financial cutoff is being deployed as a deliberate litigation tactic …
> [8]By completely blocking my baseline income, the Respondents are actively depriving me of the financial capacity to maintain my everyday household, pay property expenses, and critically, fund my legal practitioners to prosecute the active plenary actions under case number HCHF 2738/26.This is an extra –curial attempt to starve me into legal submission and force a *fait accompli* before a trial judge can rule on their forged documents."

[13] On the set down date, namely 2 July 2026, I directed the parties to address me only on the issue of urgency after which I reserved judgement. I am grateful to counsel for their insightful submissions.

Urgency

[14] There are legion decisions in this jurisdiction on what constitutes urgency. Two cases suffice for my purposes. In *Kuvarega* v *Registrar –General and Another* 1998(1) ZLR 188 (H) CHATIKOBO J said at 193 F:

> "What Constitutes urgency is not only the imminent arrival of the day of reckoning, a matter is urgent, if at the time the need to act arises, the matter cannot wait."

In Documents Support Centre (Pvt) Ltd v *Mapuvire* 2006 (2) ZLR 232 (H) MAKARAU JP (as she then was) expressed the same test at 244D-E:

> "In my view, urgent applications are those where if the courts fail to act, the applicants may well be within their rights to dismissively suggest to the court that it should not bother to act subsequently as the position would have become irreversible and irreversibly so to the prejudice of the applicant. It is my further view that, the issue of urgency is not tested subjectively. Most litigants would like to see their disputes resolved as soon as they approach the courts. The test to be employed appears to me to be an objective one where the Court has to be satisfied that the relief sought is such that it cannot wait without irreparably prejudicing the legal interest concerned."

Is this matter urgent?

[15] I agree with Ms *Mahere* that the applicant wasted no time in approaching this court for urgent relief. This position holds good whether one considers that the cause of action arose on 5 June 2026(when her legal practitioners received the Hogwe Nyengedza letter recording that no dividends and allied payments would be made to the applicant until the dispute between the parties relating to the acknowledgement of debt was resolved) or takes 25 May 2026 as the date when the need to act arose. It appears that it was on 25 May 2026 that Hogwe Nyengedza wrote the initial letter to the applicant's legal practitioners stating that no dividends and allied payments would be made in favour of the applicant until the dispute between the parties relating to the acknowledgement of debt was resolved. Although I have found for the applicant on the time factor, I am still satisfied that the matter is not urgent.

[16] On 22 June 2026 the applicant issued summons against the respondents. That action, under case number HCHF 2738/26, is pending before this Court. At paragraph 5 of this judgement, I reproduced, as items (c) and (3), the relief that the applicant is seeking in that action. Paragraph 10 of this judgement shows that such relief is exactly what the applicant seeks as interim relief in the urgent chamber application filed only a day after the summons was filed. Further, the applicant is relying on the effect of the Hogwe Nyengedza letter of 5 June 2026 to seek the same relief both in the summons matter and in the urgent chamber application. The only difference is that, before me, the relief has been couched as interim. But how can it be urgent relief when the applicant himself, before approaching the Court through

the Chamber book, had already claimed the same relief in action proceedings? I agree with Mr *Mubaiwa* that the summons matter is evidence that this which the applicant has placed before me can wait. Indeed, the applicant himself acknowledges as much because he has already issued summons claiming dividends and allied payments. There is no irreparable prejudice to his legal interest regarding payment of dividends if I do not intervene now because that issue shall be determined in the ordinary way in the summons matter.

Costs

[17] The respondent's success carries costs.

ORDER

1. The preliminary point be and is upheld.
2. The matter is not urgent.
3. The matter be and is struck off the roll of urgent matters.
4. The applicant shall pay the respondents' costs of suit.

CHIKOWERO J: ……

Mlotshwa Solicitors, applicant's legal practitioners
Diza Attorneys, respondents' legal practitioners